

Court No. - 29

Case :- WRIT - C No. - 34172 of 2018

Petitioner :- Tariq

Respondent :- Pashimanchal Vidyut Vitran Nigam Ltd.

Counsel for Petitioner :- Satyam Narayan

Counsel for Respondent :- Ajay Kumar

Hon'ble Pankaj Mithal,J.

Hon'ble Rajiv Joshi,J.

On the request made by learned counsel for the petitioner, put up this writ petition day after tomorrow i.e. 11.10.2018.

Order Date :- 9.10.2018

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Hon'ble Pankaj Mithal,J.

Hon'ble Rajiv Joshi,J.

Heard learned counsel for the petitioner and Sri Ajay Kumar, Advocate, who has accepted notice on behalf of respondents.

The petitioner has preferred this writ petition against the order dated 6.9.2018 passed by the Executive Engineer, Electricity Urban Distribution Division-I, Ghantaghar, Meerut.

On account of the alleged theft of electricity, the petitioner was submitted with the assessment charge, six times of the actual tariff amounting to Rs. 7,43,172/-. The petitioner deposited a sum of Rs. 1,23,862/- and therefore, by the impugned order, he has been asked to deposit the balance of Rs. 6,19,310/- within a period of 15 days.

The argument of learned counsel for the petitioner is that on account of alleged theft, no complaint has been lodged against the petitioner within a period of 30 days of disconnection of electricity before the Special Court, therefore, in view of Clause 8.2 of the U.P. Electricity Supply Code, 2005, the petitioner is entitled to the restoration of his electricity connection on deposit of one time of the existing tariff, which the petitioner has already deposited.

A perusal of the aforesaid Clause of the U.P. Electricity Supply Code reveals that in case a complaint of theft is not filed before the Special Court within 30 days of disconnection, the consumer can approach the authorized officer of the supplier of electricity to restore the supply on deposit of one time of the existing tariff. The petitioner has already deposited one time of the existing tariff but the Executive Engineer is demanding six times of the same, which is not legally permissible.

In view of the aforesaid facts and circumstances, we dispose of the writ petition with liberty to the petitioner to make a representation for the restoration of the electricity connection to the Executive Engineer within a period of two weeks from today and in case, any such application is filed, the Executive Engineer shall consider it in accordance with Clause 8.2 of the U.P. Electricity Supply Code, 2005. If the petitioner has already deposited the one time of the existing tariff, he will restore the electricity connection without insisting for the deposit of the balance amount provided no complaint of theft has been lodged with the Special Court within a period of 30 days.

The writ petition is disposed of.

Order Date :- 11.10.2018

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